

25NWCV02247 25NWCV02247

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C07%2F14%2F2026

Source SHA-256: bb1ee0f6eac46faf75d72c741583eb8bec93c2472997dd3c649295e55f43dbbe

Case Number: 25NWCV02247 Hearing Date: July 14, 2026 Dept: P

ALFREDO CEREZO AGUILAR v. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 25NWCV02247

HEARING: 07/14/2026 @

9:30 AM

#12

TENTATIVE ORDER

I.

Plaintiff Adolfo Cerezo Aguilar's motion
to compel Defendant to produce its PMQ for deposition is GRANTED.

II.

Plaintiff's
request for monetary sanctions is GRANTED in the amount of \$1,635 against
Defendant and its counsel of record.

Moving party to give notice.

Plaintiff Adolfo Cerezo Aguilar (Plaintiff) moves to compel Defendant
American Honda Motor Co., Inc. (Defendant) to produce a person most qualified
(PMQ) with production of documents.

Background

On June 23, 2025, Plaintiff filed this lemon law action against Defendant and Does 1 through 50. The complaint alleges that Plaintiff experienced defects and nonconformities to warranty with his Certified Pre-Owned 2022 Honda HR-V, VIN No. 3CZRU5H54NM703558 (Subject Vehicle). (Complaint, ¶¶ 8, 13.) The complaint asserts two causes of action: (1) breach of express warranty under the Song-Beverly Consumer Warranty Act and (2) breach of implied warranty under the Song-Beverly Consumer Warranty Act.

Legal Standard

Under Code of Civil Procedure section 2025.450, subd. (a), a party may move to compel a deponent's attendance and production for inspection of documents if after serving the deposition notice the responding party fails to serve valid objections and fails to appear for the deposition or produce any document described in the deposition notice. A motion under Code of Civil Procedure section 2025.450, subd. (a) must (1) provide specific facts showing good cause justifying the production for inspection of any document and (2) be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b).)

Meet and Confer

Code of Civil Procedure section 2025.450, subd. (b)(2) provides requires the moving party to file a meet and confer declaration under Section 2016.040 "or, when the deponent fails to attend the deposition and produce the documents...a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) The meet and confer declaration "shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel states that it attempted to meet and confer with defense counsel to schedule alternative dates but Defendant failed to respond prior to the date this motion was filed. (Khoubian Decl., ¶¶ 3-6.) Based on Defendant's failure to respond to Plaintiff's efforts, the Court proceeds to rule on this motion.

Discussion

Plaintiff moves to compel Defendant to produce its PMQ for deposition with production of documents on the grounds that Defendant failed to produce a PMQ for a properly noticed deposition and did not provide alternative dates.

On February 4, 2026, Plaintiff served a Notice of Deposition of Defendant's PMQ setting a deposition on February 18, 2026. (Khoubian Decl., ¶ 2.) On February 18, 2026, Defendant served its response and objections stating that it would not produce a PMQ on that date. (Khoubian Decl., ¶ 3.) Plaintiff then attempted to meet and confer regarding the deposition and requested alternative dates. (Khoubian Decl., ¶ 4.) Since that date, Defendant has not provided Plaintiff with alternative dates. (Khoubian Decl., ¶¶ 5-8.)

In opposition, Defendant contends this motion is moot because it provided Plaintiff with alternative dates and did not refuse to produce its PMQ for deposition. Defendant states that it offered Plaintiff a deposition date of August 21, 2026 and Plaintiff accepted this date. (Espinosa Decl., ¶¶ 5-6.) Defendant states that Plaintiff served an amended deposition notice setting the deposition for August 21, 2026. (Espinosa Decl., ¶ 6.) Defendant also maintains its objections to the categories of examination.

In reply, Plaintiff argues that Defendant's offer for a date after this motion was filed does not moot this motion. Plaintiff requests the Court grant this order to insure that Defendant proceeds with the planned deposition date.

Here, the Court finds that there is no dispute as to whether Defendant will produce a PMQ. However, given that Plaintiff is entitled to depose Defendant's PMQ and Defendant has failed to appear or provide alternative dates prior to this motion, the Court finds an order compelling the deposition of Defendant's PMQ appropriate.

The Court does not address any objections to the categories for examination or requests for production at this time as they are not raised in Plaintiff's motion nor in any separate statement. The Court notes that all that is required under Code of Civil Procedure section 2025.230 is that Plaintiff provides matters for examination to guide Defendant in selecting a PMQ for deposition. Where production of documents is sought in connection with the deposition, the motion must set forth specific facts showing good cause justifying the production. (Code Civ. Proc., § 2025.450, subd. (b)(1).) These

facts must also be set forth in a separate statement filed by the moving party.
(Cal. Rules of Court, rule 3.1345(a)(5).)

Accordingly, Plaintiff's motion to compel Defendant to
produce a PMQ for deposition is GRANTED.

Defendant is ORDERED to produce a PMQ for deposition as
noticed in the amended deposition notice setting the deposition on August 21,
2026. This date may be extended pursuant to agreement between the parties.

Sanctions

Plaintiff moves for monetary sanctions against Defendant for
failing to produce a PMQ for deposition and then failing to cooperate to
schedule an alternative date.

"If a motion under subdivision (a) is granted, the court
shall impose a monetary sanction... in favor of the party who noticed the
deposition and against the deponent or the party with whom the deponent is
affiliated, unless the court finds that the one subject to the sanction acted
with substantial justification or that other circumstances make the imposition
of the sanction unjust." (Code Civ. Proc., §2025.450, subd. (g)(1).)

The Court finds monetary sanctions warranted pursuant to
Code of Civil Procedure section 2025.450, subdivision (g)(1). Plaintiff
requests \$2,685 reflecting Plaintiff's counsel's hourly rate of \$525, 2.5 hours
to draft the motion, 2.5 anticipated hours to reply and prepare for the
hearing, and a \$60 filing fee. (Khoubian Decl., ¶ 10.) The Court finds this
unreasonably excessive given the simplicity of the issues raised in this
motion. The Court reduces two hours.

Plaintiff's request for monetary sanctions is GRANTED in the
reduced amount of \$1,635 against Defendant and its counsel of record. Defendant
and its counsel of record are ORDERED to pay this amount by August 21, 2026.
This date may be extended pursuant to agreement between the parties.